



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

November 20, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 14959
(FOURTH REVISION)

EXPIRATION DATE: 2027-10-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Skagit County Public Works Department
Mount Vernon, WA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce Class 3 Gasoline in private motor vehicles and trailers when in approved containers of 6 gallon or less capacity on passenger ferry vessels transporting motor vehicles. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 172 and § 173.202 in that containers of gasoline stowed on board in passenger vehicles and trailers are subject to hazard communication requirements and require authorized packaging, except as provided herein.

Tracking Number: 2023104403

5. BASIS: This special permit is based on the application of Skagit County Public Works Department dated October 6, 2023, and submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Gasoline	3	UN1203	II

7. SAFETY CONTROL MEASURES: Packaging and stowage prescribed are as follows:
- a. The extra containers of gasoline covered by this special permit are exempt from the HMR except as set forth in this special permit.
 - b. Up to two portable containers of gasoline may be carried in a private motor vehicle or trailer or combination of vehicle and trailer, provided that no single portable container shall exceed a maximum water capacity of six (6) gallons, and the containers are either USCG or UL approved.
 - c. Portable containers must be tightly closed and stowed in a suitably secure manner on the vehicle to the satisfaction of Ferry personnel.
 - d. The gasoline may not be transported in the passenger compartment of a motor vehicle.
 - e. Any container showing deterioration which might affect its integrity must not be allowed on board the vessel.
 - f. Carriage is limited to ferry vessel transportation to Guemes Island, Washington from the mainland, a distance of less than one mile.
 - g. Each owner or operator of private motor vehicle must advise the appropriate terminal staff of the presence in or on their vehicle of any portable containers of gasoline.

- h. A visual inspection by a responsible member of the crew and/or terminal staff must be made of each portable container of gasoline before it may be allowed aboard the vessel. Any container showing deterioration, which might affect its integrity, must not be allowed on board the vessel.
 - i. “No Smoking” signs must be posted on the vehicle decks.
 - j. A continuous patrol of vehicle decks must be made by crew personnel. Any unusual or dangerous situation that may affect the activities covered by this special permit must be reported promptly to the vessel’s master.
 - k. Passengers may be allowed on the vehicle decks during the voyage and are subject to the control of the crew personnel conducting the continuous vehicle deck patrol.
8. SPECIAL PROVISIONS:
- a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.
 - b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Passenger-ferry vessel.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each ferry vessel used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each Hazmat employee, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

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